

26IWUD01059 26IWUD01059

County: los-angeles

Division: Civil Law and Motion

Department: 8

Hearing date: 2026-08-10

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=ING%2C8%2C08%2F10%2F2026

Source SHA-256: f8d5710d03968344c954cdbf239b35990bc5085847f6f202b3f3d5a38a83ba3c

Case Number: 26IWUD01059 Hearing Date: August 10, 2026 Dept: 8

Defendant Scott Wacker filed a demurrer and motion to strike the complaint filed by Plaintiff Jane Corcoran. The court OVERRULES the demurrer and DENIES the motion to strike.

Wacker argues the complaint fails to state a claim and should be stricken for three reasons. First, Wacker argues Corcoran violated the Tenant Protection Act of 2019 (TPA) (Assem. Bill No. 1482 (2019-2020 Reg. Sess.) [adding sections 1947.12 and 1946.2 to the Civil Code]) by failing to include the exact language set forth in Civil Code section 1946.2, subdivision (e)(8)(B)(i), in the notice of termination Corcoran served on Wacker. Wacker argues that failure rendered the notice, and thus the complaint, legally defective.

Even if Corcoran failed to comply strictly with Civil Code section 1946.2, subdivision (e)(8)(B)(i), Wacker cites no authority in which a court held a complaint subject to demurrer for that reason. Instead, the cases Wacker cites stand for the proposition that a plaintiff must strictly comply with the notice provisions set forth in Code of Civil Procedure sections 1161 and 1162 to state a cause of action for unlawful detainer. (See *Liebovich v. Shahrokhkhany* (1997) 56 Cal.App.4th 511, 513-514 [section 1162]; *Bevill v. Zoura* (1994) 27 Cal.App.4th 694, 697 [section 1161, subd. (2)]; *Kwok v. Bergren* (1982) 130 Cal.App.3d 596, 600 [section 1162].)

Moreover, the court concludes that failure to comply with Civil Code section 1946.2, subdivision (e)(8)(B)(i), may be an affirmative defense to an action for unlawful detainer, but it is not a basis for a demurrer. Subdivision (g) of Civil Code section 1946.2 states: "An owner's failure to comply with any provision of this section shall render the written termination notice void." This provision does not "specify[] who bears the burden of proof." (See *360 So Reeves, LLC v. Dutton* (2026) 119 Cal.App.5th Supp. 1, [342 Cal.Rptr.3d 579, 588]; *Boyd v. Carter* (2014) 227 Cal.App.4th Supp. 1, 7.) Thus, under the reasoning of *360 So Reeves, LLC v. Dutton*, supra, compliance with Civil Code section 1946.2, subdivision (e)(8)(B)(i), is not an element of the lessor's prima facie case, unlike the statutory requirements of Code of Civil Procedure section 1161. (See id. at pp. 586-588 [concluding compliance with the statutory requirements of Civil Code section 1962 is an affirmative defense].)

Second, Wacker argues Corcoran failed to allege a legally cognizable just cause for termination. But that's because Corcoran alleged the TPA does not apply to the property. Indeed, the complaint alleges: "This property meets the requirements of Sections 1947.12 (d)(5) and 1946.2 (e)(8) of the Civil Code and the owner is not any of the following: (1) a real estate investment trust, as defined by Section 856 of the Internal Revenue Code; (2) a corporation; or (3) a limited liability company in which at least one member is a corporation." Thus, Corcoran need not allege a basis for a just-cause eviction under the TPA.

Finally, Wacker argues the complaint is "uncertain, ambiguous, and unintelligible" for the following italicized reasons, to which the court responds in turn:

The complaint fails to clearly identify the operative notice to quit. The complaint alleges a cause of action for unlawful detainer under Code of Civil Procedure section 1161, subdivision 1. Paragraph 8 alleges: "On June 3, 2026, pursuant to Section 1946.1(c) of the California Civil Code, JANE CORCORAN, having entered into a contract to sell the Property on or about April 9, 2026, served the tenant with a written 30-day notice that JANE CORCORAN did not intend to renew the tenancy beyond July 5, 2026." That Corcoran served a second notice of termination at the end of the 30-day period does not make the complaint uncertain, ambiguous, or unintelligible.

The complaint omits allegations regarding the date upon which the operative notice expired and the manner of service. The complaint alleges Wacker remained in possession of the property at the time the complaint was filed, and it attached the proof of service for the notice of termination. That is sufficient. (See Code Civ. Proc., § 1166, subd. (a)(5).)

The complaint omits material allegations concerning the tenancy and whether the tenancy is subject to any applicable rent stabilization or just cause ordinance. The complaint alleges Wacker entered into a month-to-month agreement dated December 19, 2019, which the parties extended to July 5, 2026. The complaint also attached what is purported to be a true and correct copy of that "extension agreement." That is sufficient. (See Code Civ. Proc., § 1166, subds. (a), (d).) Moreover, Wacker cites no authority for the proposition that a complaint must allege whether the property at issue is subject to any rent stabilization or just cause ordinance.

The verification is facially illegible. The verification of the complaint as filed is fully legible.

The only new argument raised in Wacker's motion to strike is that that the complaint's prayer for relief seeking \$600 in damages under Code of Civil Procedure section 1174, subdivision (b), should be stricken. That statute allows for such damages where a defendant is found guilty of unlawful detainer "and malice is shown." (Ibid.) In *Fifth & Broadway Partnership v. Kimny, Inc.* (1980) 102 Cal.App.3d 195, the court found evidence that a sublessee continued in possession of premises after conceding that his right to possession had terminated and rejecting terms that would have permitted him to remain in possession was sufficient to permit award of the then-treble damages available under section 1174. (*Fifth & Broadway Partnership*, at p. 204.) And in *Sasson v. Katash* (1983) 146 Cal.App.3d 119, the court found malice where the lessee knew he did not have a new lease with the lessor, was on notice that his old lease would not be renewed, and had no reasonable belief that he would be granted a new lease. (Id. at p. 127.) The court finds the allegations of the complaint together with the notices of termination sufficient to allege malice under section 1174.

The court orders Wacker to file an answer only within 5 days' notice of this ruling.